

SOUTER, J., dissenting

I

The Court rests its decision principally on the claim that immunity from suit was “a fundamental aspect of the sovereignty which the States enjoyed before the ratification of the Constitution,” *ante*, at 713, an aspect which the Court understands to have survived the ratification of the Constitution in 1788 and to have been “confirm[ed]” and given constitutional status, *ante*, at 714, by the adoption of the Tenth Amendment in 1791. If the Court truly means by “sovereign immunity” what that term meant at common law, see *ante*, at 737, its argument would be insupportable. While sovereign immunity entered many new state legal systems as a part of the common law selectively received from England, it was not understood to be indefeasible or to have been given any such status by the new National Constitution, which did not mention it. See *Seminole Tribe*, *supra*, at 132–142, 160–162, and n. 55 (SOUTER, J., dissenting). Had the question been posed, state sovereign immunity could not have been thought to shield a State from suit under federal law on a subject committed to national jurisdiction by Article I of the Constitution. Congress exercising its conceded Article I power may unquestionably abrogate such immunity. I set out this position at length in my dissent in *Seminole Tribe* and will not repeat it here.¹

The Court does not, however, offer today’s holding as a mere corollary to its reasoning in *Seminole Tribe*, substituting the Tenth Amendment for the Eleventh as the occasion

¹ The Court inexplicably protests that “the right to trial by jury and the prohibition on unreasonable searches and seizures . . . derive from the common law,” *ante*, at 733, but are nonetheless indefeasible. I cannot imagine how this could be thought relevant to my argument. These rights are constitutional precisely because they are enacted in the Sixth and Fourth Amendments, respectively, while the general prerogative of sovereign immunity appears nowhere in the Constitution. My point is that the common law rights that were not enacted into the Constitution were universally thought defeasible by statute.

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demands, and it is fair to read its references to a “fundamental aspect” of state sovereignty as referring not to a prerogative inherited from the Crown, but to a conception necessarily implied by statehood itself. The conception is thus not one of common law so much as of natural law, a universally applicable proposition discoverable by reason. This, I take it, is the sense in which the Court so emphatically relies on Alexander Hamilton’s reference in *The Federalist* No. 81, p. 548 (J. Cooke ed. 1961), to the States’ sovereign immunity from suit as an “inherent” right, see *ante*, at 716, a characterization that does not require, but is at least open to, a natural law reading.

I understand the Court to rely on the Hamiltonian formulation with the object of suggesting that its conception of sovereign immunity as a “fundamental aspect” of sovereignty was a substantially popular, if not the dominant, view in the periods of Revolution and Confederation. There is, after all, nothing else in the Court’s opinion that would suggest a basis for saying that the ratification of the Tenth Amendment gave this “fundamental aspect” its constitutional status and protection against any legislative tampering by Congress.² The Court’s principal rationale for today’s result, then, turns on history: was the natural law conception of sovereign immunity as inherent in any notion of an independent State widely held in the United States in the period preceding the ratification of 1788 (or the adoption of the Tenth Amendment in 1791)?

² I am assuming that the Court does not put forward the theory of the “fundamental aspect” as a newly derived conception of its own, necessarily comprehended by the Tenth Amendment guarantee only as a result of logic independent of any intention of the Framers. Nor does the Court argue, and I know of no reason to suppose, that every legal advantage a State might have enjoyed at common law was assumed to be an inherent attribute of all sovereignties, or was constitutionalized wholesale by the Tenth Amendment, any more than the Ninth Amendment constitutionalized all common law individual rights.